



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36192124

Date: JAN. 23, 2025

Motion on Administrative Appeals Office Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner seeks employment-based second preference (EB-2) immigrant classification as either a member of the professions holding an advanced degree or an individual of exceptional ability, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Texas Service Center denied the petition, concluding the Petitioner did not establish that a waiver of the required job offer, and thus of the labor certification, would be in the national interest. The Petitioner filed an appeal, which we rejected as untimely filed. We then dismissed a subsequent combined motion to reopen and reconsider as untimely filed. We dismissed a second combined motion to reopen and reconsider because we determined we lacked jurisdiction over the Petitioner's motions.

The matter is before us again on a third combined motion to reopen and reconsider. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). Upon review, we will dismiss the combined motion.

A motion to reopen must state new facts and be supported by documentary evidence. 8 C.F.R. § 103.5(a)(2). A motion to reconsider must establish that our prior decision was based on an incorrect application of law or policy and that the decision was incorrect based on the evidence in the record of proceedings at the time of the decision. 8 C.F.R. § 103.5(a)(3). A motion that does not satisfy the applicable requirements must be dismissed. 8 C.F.R. § 103.5(a)(4).

By regulation, the scope of a motion is limited to review of "the prior decision." 8 C.F.R. § 103.5(a)(1)(i). General support that a motion must first overcome the most recent decision lies within the regulation at 8 C.F.R. § 103.5(a)(1)-(3), which discusses the underlying or latest decision, the time limits one has to file a motion after that decision, and the jurisdiction resting with the entity who made the latest decision. Any motion must first address and overcome the most recent adverse decision before the filing party's arguments may move on to any issue that arose in a previous petition, appeal, or motion filing.

The matter to be overcome within this motion is limited to the issue discussed in our most recent decision; as described above, we dismissed the Petitioner's second combined motion to reopen and reconsider, concluding that we did not have jurisdiction over the Petitioner's motions. On appeal, the Petitioner submits evidence previously submitted and reasserts her eligibility for a national interest waiver. The Petitioner does not, however, provide new facts or documentary evidence relevant to our lack of jurisdiction over her motions, nor does she question the factual or legal correctness of our decision to dismiss based on our lack of jurisdiction.

We must dismiss motions that do not meet applicable requirements. 8 C.F.R. § 103.5(a)(4). We will, therefore, dismiss the Petitioner's motions.

ORDER: The motion to reopen is dismissed.

FURTHER ORDER: The motion to reconsider is dismissed.